

Court No. - 21

Case :- WRIT - C No. - 7998 of 2023

Petitioner :- Maha Narayan Kushwaha

Respondent :- Executive Engineer (Presiding Officer) And 2 Others

Counsel for Petitioner :- Ramesh Kumar Yadav

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Learned counsel for the respondent electricity department, Sri Narendra Kumar Tiwari prays for and is granted time to obtain instructions.

Put up as fresh on 27.03.2023.

In the meantime, no coercive action shall be taken against the petitioner.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 15.3.2023

Jaswant

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The petitioner has challenged the demand notice dated 12.12.2022 issued by respondent no.1 for recovery of electricity dues in a case of theft of electricity.

Sri N.K. Tiwari, learned counsel for the respondent-Electricity Department states that the impugned notice has been withdrawn and that a fresh decision will be taken after providing opportunity of hearing to the consumer.

Accordingly, the respondent-Electricity Department is permitted to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

The petition stands disposed of accordingly.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 27.3.2023

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